

The Telangana Panchayat Raj (Conduct of Election of Member (Co-opted), President and Vice-President of Mandal Praja Parishad and Members (Co-opted), Chairperson and Vice-Chairperson of Zilla Praja Parishad) Rules, 2018

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State of Telangana - Act

The Telangana Panchayat Raj (Conduct of Election of Member (Co-opted), President and Vice-President of Mandal Praja Parishad and Members (Co-opted), Chairperson and Vice-Chairperson of Zilla Praja Parishad) Rules, 2018

TELANGANA

India

The Telangana Panchayat Raj (Conduct of Election of Member (Co-opted), President and Vice-President of Mandal Praja Parishad and Members (Co-opted), Chairperson and Vice-Chairperson of Zilla Praja Parishad) Rules, 2018

Rule

THE-TELANGANA-PANCHAYAT-RAJ-CONDUCT-OF-ELECTION-OF-MEMBER-CO-OPTED-PRESIDENT-AND-VICE-PRESIDENT-OF-MANDAL-PRAJA-PARISHAD-AND-MEMBERS-CO-OPTED-CHAIRPERSON-AND-VICE-CHAIRPERSON-OF-ZILLA-PRAJA-PARISHAD-RULES-2018 of 2018

Published on 19 May 2018

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The Telangana Panchayat Raj (Conduct of Election of Member (Co-opted), President and Vice-President of Mandal Praja Parishad and Members (Co-opted), Chairperson and Vice-Chairperson of Zilla Praja Parishad) Rules, 2018
Published vide Notification No. G.O.Ms.No.27, Panchayat Raj and Rural Development (PTS.3) Department, dated 19.5.2018

G.O.Ms.No.27, Panchayat Raj and Rural Development (PTS.3) Department, dated 19.5.2018. - In exercise of the powers conferred by Section 286 read with clause (vi) of subsection (1) of Section 143, Section 147, clause (vi) of sub-section (3) of Section 172 and Section 176 of the Telangana Panchayat Raj Act, 2018 (Act

5 of 2018

), the Governor of Telangana hereby makes the following Rules relating to Conduct of Election of Members (Co-opted), President and Vice-President of Mandal Praja Parishad and Member (Co-opted), Chairperson and Vice-Chairperson of Zilla Praja Parishad.

Part I ? Preliminary

1.

Short title.

- These Rules may be called the Telangana Panchayat Raj (Conduct of Election of Member (Co-opted), President and Vice-President of Mandal Praja Parishad and Members (Co-opted), Chairperson and Vice-Chairperson of Zilla Praja Parishad) Rules, 2018.

2.

Definitions.

- In these Rules, unless the context otherwise requires, -

(i)

"Act" means the Telangana Panchayat Raj Act, 2018 (Act

No. 5 of 2018

);

(ii)

'Form' means the form appended to these rules;

(iii)

'section' means a section of the Act; and

(iv)

the words and expressions used but not defined in these rules shall have the meanings respectively assigned to them in the Act.

Part II ? Election of Member (Co-Opted) of Mandal Praja Parishad

3.

Convening of special meeting for election of Member (Co-opted), Mandal Praja Parishad.

(1)

The election of the member specified in clause (vi) of sub-section (1) of Section 143 (hereinafter in this part referred as the "Member (Co-opted)) shall be held in the office of the Mandal Praja Parishad at a special meeting of the members of the Mandal Praja Parishad specified in clauses (i) to (v) thereof, convened and presided over by any Gazetted Officer of the Government authorised by the District Collector in Form-I in this behalf.

(2)

The Notice of the date and hour of such meetings shall be given in Form-II in Telugu language to the members of the Mandal Praja Parishad specified in clauses (i) to (v) of sub-section (1) of Section 143, atleast three clear days in advance of the date of the meeting by the Gazetted officer of the Government authorized by the District Collector under sub-rule (1).

4.

Quorum for election of Member (Co-opted), Mandal Praja Parishad.

- No meeting for the conduct of election of member (Co-opted) shall be held unless there be present at the meeting atleast one-half of the number of members then on the Mandal Praja Parishad who are entitled to vote at the election, that is, members specified in clause (i) of sub-section (1) of section 143, within one hour from the time appointed for the meeting.

Explanation. - For the purpose of this rule, in the determination of one-half of the members any fraction below 0.5 shall

be ignored and any fraction of 0.5 or above shall be taken as one.

5.

Manner of Election of Member (Co-opted), Mandal Praja Parishad.

(1)

A candidate for election of Member (co-opted) shall be nominated by means of a nomination paper in Form-III duly proposed by one elected member and seconded by another elected member. On the nomination paper the candidate shall also sign the declaration therein expressing his/her willingness to stand for election. The nomination shall be filed before the presiding Officer at the office of the Mandal Praja Parishad before 10.00 AM on the date fixed for the meeting. No member shall propose or second more than one candidate. Nominations shall not be received after the appointed time.

(2)

The Presiding Officer shall scrutinise the nomination papers at the Mandal Praja Parishad office after 10.00 A.M on the date of the meeting and his/her decision as to the validity or otherwise of the nomination shall be final.

(3)

The Presiding Officer shall publish the list of valid nominations on the notice board of the Mandal Praja Parishad on the same day atleast one hour before the time appointed for the meeting.

(4)

Any candidate wishing to withdraw his/her nomination may do so by delivering a letter to that effect to the Presiding Officer before the commencement of the meeting.

(5)

If only one candidate is duly proposed, he/she shall be declared to have been elected.

(6)

If the number of candidates exceeds more than one for the said seat, the election shall be held by show of hands. The Presiding Officer shall then read out the names of contesting candidates. He/she shall thereafter record the number of votes polled for each such candidates as ascertained by show of hands. He/she shall announce the number of votes secured by each candidate and shall declare the candidate who secures the highest number of votes, as elected.

(7)

In the event of there being an equality of votes between the two candidates the Presiding Officer shall draw lots in the presence of the members and the candidate whose name is first drawn shall be declared to have been duly elected.

(8)

If, for any reason, the election of Member (Co-opted) is not held on the date fixed as aforesaid, the meeting for the election of the President or Vice-President shall not be held and the matter shall be reported to the State Election Commission for fixing another date for holding election of Member (Co-opted), President and Vice-President of Mandal Praja Parishad.

(9)

The Presiding Officer shall, immediately after declaring the candidate as elected, inform him/her that there will be held another meeting that day or the next day for the election of President and Vice-President of Mandal Praja Parishad and that a notice announcing the time, date, venue, etc. will shortly be placed on the notice board of the Mandal Praja Parishad in Form-IV and he/she shall also request them to read it after the conclusion of the meeting.

6.

Record of proceedings (Member (Co-opted), Mandal Praja Parishad).

- Immediately after the declaration of the result of the election, the Presiding Officer shall-

(a)

prepare a record of the proceedings of the meeting and sign it attesting with his/her initials every correction made therein and shall also permit any members present at the meeting to affix their signatures to such record, if they so desire.

(b)

publish on the notice board of the Mandal Praja Parishad, a notice signed by him/her, stating the name of the person elected as Member (Co-opted) of the Mandala Praja Parishad and send a copy of such notice to the State Election Commission, the Commissioner, Panchayat Raj and the District Collector. A copy of this notice shall also be given to the candidate who is declared elected.

7.

Filling up of Casual Vacancies of Member (Co-opted), Mandal Praja Parishad.

- A casual vacancy occurring in the office of a Member (Co-opted) of a Mandal Praja Parishad, shall be filled in an ordinary meeting of the Mandal Praja Parishad within a period of eight weeks from the date of occurrence of such vacancy and the procedure laid down in this part shall apply in all other respects.

Part III ? Election of President and Vice-President of Mandal Praja Parishad

8.

Convening of special meeting for election of President and Vice President.

(1)

On the same day on which the special meeting for election of a member (Co-opted) of Mandal Praja Parishad is held and soon after the election of the member is over, a special meeting shall also be held by the Gazetted Officer authorised by the District Collector under sub-rule (1) of rule 3 in the office of the Mandal Praja Parishad at the hour to be announced under sub-rule (9) of Rule 5, for the election of President and Vice-President in the manner hereafter laid down.

(2)

Notice of the date and hour of such meeting shall be given in Form - II to the members specified in clauses (i) to (v) of sub-section (1) Section 143 atleast three clear days in advance of the date of the meeting fixed for the election of the President and Vice-President, Mandal Praja Parishad by the Gazetted Officer authorised by the District Collector under sub-rule (1) of Rule 3. In respect of Member (Co-opted), the notice in Form -IV shall be affixed on the notice board of the Mandal Praja Parishad.

(3)

If, for any reason, the election of the President or Vice-President is not held on the date fixed as aforesaid, the meeting for the election of the President or Vice- President shall be held on the next day, whether or not it is a holiday observed by the Mandal Praja Parishad and whether the President or Vice-President could not be elected on the next day also, the matter shall be reported to the State Election Commission for fixing another date for holding election.

9.

Quorum for election of President and Vice-President.

(1)

No meeting for the conduct of election of President and Vice-President of a Mandal Praja Parishad shall be held unless there be present at the meeting atleast one half of the number of members then on the Mandal Praja Parishad who are entitled to vote at the election, that is, members specified in clause (i) of sub-section (1) of Section 143, within one hour from the time appointed for the meeting.

Explanation. - For the purpose of this rule, in the determination of one-half of the members, any fraction below 0.5 shall be ignored and any fraction of 0.5 or above shall be taken as one.

(2)

Where the Election of President or Vice-President could not be conducted in the first two special meetings convened for the purpose, for want of quorum, the President or Vice-President shall be elected in the subsequent meeting or meetings convened for the purpose from among the members present without insisting for quorum.

10.

Manner of Election (President and Vice-President, Mandal Praja Parishad).

(1)

A candidate for the office of the President or Vice-President of a Mandal Praja Parishad, shall be proposed by one member and seconded by another. If any candidate claims to be contesting on behalf of a recognised political party, he shall produce an authorisation from the president of the party in the State or a person duly authorized by the State President under his office seal and such authorisation shall be produced before the Presiding Officer before 10.00 AM. on the day of the election. The names of all candidates validly proposed and seconded shall be read out along with the name of the Political Party which has set him/her up, by the Presiding Officer in the meeting.

(2)

If only one candidate is duly proposed, he/she shall be declared to have been elected.

(3)

If there are two or more candidates, an election shall be held by show of hands and votes taken of the members present

at the meeting.

(4)

When an election notice is issued for conducting election to both the offices of President and Vice- President, no election to the office of the Vice-President shall be conducted, unless the office of the President is filled up. Only after the completion of election of President, the Presiding Officer shall conduct election to the office of Vice-President.

(5)

The Presiding Officer shall thereafter record the number of votes polled, for each such candidates ascertained by show of hands. He/she shall announce the number of votes secured by each candidate and shall declare the candidate who secures the highest number of votes, as elected.

(6)

In the event of there being an equality of votes between two candidates, the Presiding Officer shall draw lots in the presence of the members and the candidate whose name is first drawn shall be declared to have been duly elected.

11.

Disqualification for disobedience of party whip (Mandal Praja Parishad).

(1)

Every recognized political party may appoint on behalf of that political party a whip and intimation of such appointment shall be sent by the State President or a person authorized by him/her under his/her signature and seal and such intimation shall be sent to the Presiding Officer so as to reach him on or before 11.00 A.M. on the day preceding the day of election to the office of the President and Vice-President of the Mandal Praja Parishad.

(2)

The person appointed as whip by the recognized political party shall furnish a copy of the contents of the whip issued by him/her to the Presiding Officer at least an hour before the commencement of special meeting.

(3)

The person appointed as whip by a recognized political party shall, in addition to a copy of the contents of the whip issued by him/her, also furnish a copy of the acknowledgement obtained from the members belonging to the party on the service of the whip to them, to the Presiding Officer before the commencement of the meeting. If any member elected on behalf of the recognized political party refuses to receive the whip issued by him/her, he/she shall record the same and furnish a copy of it to the Presiding Officer.

(4)

Any member of the Mandal Praja Parishad elected, on behalf of a recognized political party shall cease to be a Member of the Mandal Praja Parishad for disobeying the directions of the party whip so issued, in the manner hereinafter provided.

(5)

The Presiding Officer shall, on receipt of a written report from the party whip within three days of the election that a member belonging to his/her party has disobeyed the whip issued in connection with the election, give a show-cause notice to the member concerned as to why he/she should not be declared to have ceased to hold office and that he/she should make any representation within seven days from the date of the notice. The Presiding Officer shall consider any explanation given within seven days and pass a speaking order in the matter of cessation for disobedience of the whip within two days of receipt of explanation. If no explanation is received, within seven days, the Presiding Officer shall pass an order on the basis of the material available with him within two days after expiry of seven days period.

12.

Record of Proceedings (Election of President and Vice-President).

- Immediately after the declaration of the result of the election, the Presiding Officer shall, -

(a)

prepare a record of the proceedings of the meeting and sign it attesting with his initials every correction made therein and shall also permit any members present at the meeting to affix their signatures to such record, if they so desire.

(b)

publish on the notice board of the Mandal Praja Parishad a notice signed by him/her stating the name of the person elected as President or Vice-President, as the case may be of the Mandal Praja Parishad and send a copy of such notice to the State Election Commission, Commissioner of Panchayat Raj and the District Collector. A copy of the notice shall also be given to the candidate who is declared to have been elected.

13.

Filling up of casual vacancies (President and Vice-President, Mandal Praja Parishad).

(1)

Every casual vacancy in the office of President or Vice-President of Mandal Praja Parishad shall be filled up within a period of six months from the date of occurrence of such vacancy in accordance with the rules in this part.

Provided that, before a casual election of President or Vice-President is held, every casual vacancy in the office of an elected member of a Mandal Praja Parishad shall be filled.

However, in the event of a vacancy in the office of an elected member of Mandal Praja Parishad occurs for any reason after the issue of President or Vice-President casual election notification by the State Election Commission, the election to the office of President or Vice-President shall not be stalled and shall be conducted as per the schedule.

(2)

The notice of date and hour of the meeting in which the election to fill up a casual vacancy in the office of President or Vice-President of Mandal Praja Parishad is to be held shall be given in Form-V to members at least three clear days in advance of such meeting. The meeting shall be presided over by a gazetted officer of the Government authorised by the District Collector in this behalf.

Part IV ? Election of Members (Co-Opted) of Zilla Praja Parishad

14.

Convening of special meeting for election of Members (Co-opted), Zilla Praja Parishad.

(1)

The election of the members specified in clause (vi) of subsection (3) of Section 172 (hereinafter in this part referred as the "Members (Co-opted)) shall be held in the office of the Zilla Praja Parishad at a special meeting of the members of the Zilla Praja Parishad specified in clauses (i) to (v) thereof, convened and presided over by the District Collector.

(2)

The Notice of the date and hour of such meetings shall be given in Form-VI in Telugu language to the members of the Zilla Praja Parishad specified in clauses (i) to (v) of sub-section (3) of Section 172, atleast three clear days in advance of the date of the meeting by the District Collector.

15.

Quorum for election of Members (Co-opted), Zilla Praja Parishad.

- No meeting for the conduct of election of members (Co-opted) shall be held unless there be present at the meeting atleast one-half of the number of members then on the Zilla Praja Parishad who are entitled to vote at the election, that is, members specified in clause (i) of sub-section (3) of Section 172 within one hour from the time appointed for the meeting.

Explanation. - For the purpose of this rule, in the determination of one-half of the members, any fraction below 0.5 shall be ignored and any fraction of 0.5 or above shall be taken as one.

16.

Manner of Election of Members (Co-opted), Zilla Praja Parishad.

(1)

A candidate for election of Member (co-opted) shall be nominated by means of a nomination paper in Form-VII duly proposed by one elected member and seconded by another elected member. On the nomination paper the candidate shall also sign the declaration therein expressing his/her willingness to stand for election. The nomination shall be filed before the presiding Officer at the office of the Zilla Praja Parishad before 10.00 AM on the date fixed for the meeting. No member shall propose or second more than one candidate. Nominations shall not be received after the appointed time.

(2)

The Presiding Officer shall scrutinise the nomination papers at the Zilla Praja Parishad office after 10.A.M on the date of the meeting and his/her decision as to the validity or otherwise of the nomination shall be final.

(3)

The Presiding Officer shall publish the list of valid nominations on the notice board of the Zilla Praja Parishad on the same day atleast one hour before the time appointed for the meeting.

(4)

Any candidate wishing to withdraw his/her nomination may do so by delivering a letter to that effect to the Presiding

Officer before the commencement of the meeting.

(5)

If only one candidate is duly proposed, he/she shall be declared to have been elected.

(6)

If the number of candidates exceeds more than one for the said seat, the election shall be held by show of hands. The Presiding Officer shall then read out the names of contesting candidates. He/she shall thereafter record the number of votes polled for each such candidate as ascertained by show of hands. He/she shall announce the number of votes secured by each candidate and shall declare the candidate who secures the highest number of votes as elected.

(7)

In the event of there being an equality of votes between the two candidates the Presiding Officer shall draw lots in the presence of the members and the candidate whose name is first drawn shall be declared to have been duly elected.

(8)

If, for any reason, the election of Member (Co-opted) is not held on the date fixed as aforesaid, the meeting for the election of the Chairperson or Vice-Chairperson shall not be held and the matter shall be reported to the State Election Commission for fixing another date for holding election of Member (Co-opted), Chairperson and Vice-Chairperson of the Zilla Praja Parishad.

(9)

The Presiding Officer shall, immediately after declaring the candidate as elected, inform them that there will be held another meeting that day or the next day for the election of Chairperson and Vice-Chairperson of Zilla Praja Parishad and that a notice announcing the time, date, venue, etc. will shortly be placed on the notice board of the Zilla Praja Parishad in Form-VIII and he shall also request them to read it after the conclusion of the meeting.

17.

Record of proceedings (Members (Co-opted)), Zilla Praja Parishad).

- Immediately after the declaration of the result of the election, the Presiding Officer shall-

(a)

prepare a record of the proceedings of the meeting and sign it attesting with his/her initials every correction made therein and shall also permit any members present at the meeting to affix their signatures to such record, if they so desire.

(b)

publish on the notice board of the Zilla Praja Parishad a notice signed by him/her, stating the name of the person elected as Member (Co-opted) of the Zilla Praja Parishad and send a copy of such notice to the State Election Commission, the Commissioner, Panchayat Raj and the District Collector. A copy of this notice shall also be given to the candidate who is declared elected.

18.

Filling up of Casual Vacancies of Members (Co-opted), Zilla Praja Parishad.

- A casual vacancy occurring in the office of a Member (Co-opted) of a Zilla Praja Parishad shall be filled in an ordinary meeting of the Zilla Praja Parishad within a period of eight weeks from the date of occurrence of such vacancy and the procedure laid down in this part shall apply in all other respects.

Part V ? Election of Chairperson and Vice-Chairperson of Zilla Praja Parishad

19.

Convening of special meeting for election of Chairperson and Vice-Chairperson.

(1)

On the same day on which the special meeting for election of members (Co-opted) of Zilla Praja Parishad is held and soon after the election of the members is over, a special meeting shall also be held by the District Collector in the office of the Zilla Praja Parishad at the hour to be announced under sub rule (9) of Rule 16, for the election of Chairperson and Vice-Chairperson in the manner hereafter laid down.

(2)

Notice of the date and hour of such meeting shall be given in Form - VI to the members specified in clauses (i) to (v) of sub-section (3) of section 172 atleast three clear days in advance of the date of the meeting fixed for the election of the Chairperson and Vice-Chairperson, Zilla Praja Parishad by the District Collector. In respect of Members (Co-opted), the notice in Form-VIII shall be affixed on the notice board of the Zilla Praja Parishad.

(3)

If, for any reason, the election of the Chairperson or Vice-Chairperson is not held on the date fixed as aforesaid, the meeting for the election of the Chairperson or Vice-Chairperson shall be held on the next day, whether or not it is a holiday observed by the Zilla Praja Parishad and whether the Chairperson or Vice-Chairperson could not be elected on the next day also, the matter shall be reported to the State Election Commission for fixing another date for holding election.

20.

Quorum for election of Chairperson or Vice-Chairperson.

(1)

No meeting for the conduct of election of Chairperson and Vice-Chairperson of a Zilla Praja Parishad shall be held unless there be present at the meeting atleast one half of the number of members then on the Zilla Praja Parishad who are entitled to vote at the election, that is, members specified in clause (i) of sub-section (3) of Section 172, within one hour from the time appointed for the meeting.

Explanation. - For the purpose of this rule, in the determination of one-half of the members, any fraction below 0.5 shall be ignored and any fraction of 0.5 or above shall be taken as one.

(2)

Where the Election of Chairperson or Vice-Chairperson could not be conducted in the first two special meetings convened for the purpose for want of quorum, the Chairperson or Vice-Chairperson shall be elected in the subsequent meeting or meetings convened for the purpose from among the members present without insisting for quorum.

21.

Manner of Election (Chairperson and Vice-Chairperson, Zilla Praja Parishad).

(1)

A candidate for the office of the Chairperson or Vice-Chairperson of a Zilla Praja Parishad shall be proposed by one member and seconded by another. If any candidate claims to be contesting on behalf of a recognized political party, he/she shall produce an authorisation from the president of the party in the State or a person duly authorized by the State President under his office seal and such authorisation shall be produced before the Presiding Officer before 10.00 AM. on the day of the election. The names of all candidates, validly proposed and seconded, shall be read out along with the name of the Political Party which has set him/her up, by the Presiding Officer in the meeting.

(2)

If only one candidate is duly proposed, he/she shall be declared to have been elected.

(3)

If there are two or more candidates an election shall be held by show of hands and votes taken of the members present at the meeting.

(4)

When an election notice is issued for conducting election to both the offices of Chairperson and Vice-Chairperson, no election to the office of the Vice-Chairperson shall be conducted, unless the office of the Chairperson is filled up. Only after the completion of election of Chairperson, the Presiding Officer shall conduct election to the office of Vice-Chairperson.

(5)

The Presiding Officer shall thereafter record the number of votes polled, for each such candidates ascertained by show of hands. He/she shall announce the number of votes secured by each candidate and shall declare the candidate who secures the highest number of votes, as elected.

(6)

In the event of there being an equality of votes between two candidates, the Presiding Officer shall draw lots in the presence of the members and the candidate whose name is first drawn shall be declared to have been duly elected.

22.

Disqualification for disobedience of party whip (Zilla Praja Parishad).

(1)

Every recognised political party may appoint on behalf of that political party a whip and intimation of such appointment shall be sent by the State President or a person authorised by him under his signature and seal and such intimation shall be sent to the Presiding Officer so as to reach him on or before 11.00 A.M. on the day preceding the day of

election to the office of the Chairperson and Vice-Chairperson of the Zilla Praja Parishad.

(2)

The person appointed as whip by the recognized political party shall furnish a copy of the contents of the whip issued by him/her to the Presiding Officer at least an hour before the commencement of special meeting.

(3)

The person appointed as whip by a recognized political party shall, in addition to a copy of the contents of the whip issued by him/her, also furnish a copy of the acknowledgement obtained from the members belonging to the party on the service of the whip to them, to the Presiding Officer before the commencement of the meeting. If any member elected on behalf of the recognized political party refuses to receive the whip issued by him/her, he/she shall record the same and furnish a copy of it to the Presiding Officer.

(4)

Any member of the Zilla Praja Parishad elected, on behalf of a recognized political party shall cease to be a Member of the Zilla Praja Parishad for disobeying the directions of the party whip so issued, in the manner hereinafter provided.

(5)

The Presiding Officer shall, on receipt of a written report from the party whip within three days of the election that a member belonging to his/her party has disobeyed the whip issued in connection with the election, give a show-cause notice to the member concerned as to why he/she should not be declared to have ceased to hold office and that he/she should make any representation within seven days from the date of the notice. The Presiding Officer shall consider any explanation given within seven days and pass a speaking order in the matter of cessation for disobedience of the whip within two days of receipt of explanation. If no explanation is received within seven days, the Presiding Officer shall pass an order on the basis of the material available with him/her within two days after expiry of seven days period.

23.

Record of Proceedings (Election of Chairperson and Vice-Chairperson).

- Immediately after the declaration of the result of the election, the Presiding Officer shall, -

(a)

prepare a record of the proceedings of the meeting and sign it attesting with his/her initials every correction made therein and shall also permit any members present at the meeting to affix their signatures to such record, if they so desire.

(b)

publish on the notice board of the Zilla Praja Parishad a notice signed by him/her stating the name of the person elected as Chairperson or Vice-Chairperson, as the case may be, of the Zilla Praja Parishad and send a copy of such notice to the State Election Commission, Commissioner of Panchayat Raj and the District Collector. A copy of the notice shall also be given to the candidate who is declared to have been elected.

24.

Filling up of casual vacancies (Chairperson and Vice-Chairperson, Zilla Praja Parishad).

(1)

Every casual vacancy in the office of Chairperson or Vice-Chairperson of Zilla Praja Parishad shall be filled up within a period of six months from the date of occurrence of such vacancy in accordance with the rules in this part.

Provided that, before a casual election of Chairperson or Vice-Chairperson is held, every casual vacancy in the office of an elected member of a Zilla Praja Parishad shall be filled.

However, in the event of a vacancy in the office of an elected member of Zilla Praja Parishad occurs for any reason after the issue of Chairperson or Vice-Chairperson casual election notification by the State Election Commission, the election to the office of Chairperson or Vice-Chairperson shall not be stalled and shall be conducted as per the schedule.

(2)

The notice of date and hour of the meeting in which the election to fill up a casual vacancy in the office of Chairperson or Vice-Chairperson of Zilla Praja Parishad is to be held shall be given in Form-IX to members at least three clear days in advance of such meeting. The meeting shall be presided over by the District Collector.

Part -VI Miscellaneous

25.

Postponement of Meeting.

- Notwithstanding anything contained in these rules, the State Election Commission may, for sufficient reasons to be

recorded in writing, direct, from time to time, the postponement or alteration of the date of any meeting convened under these rules and the Presiding Officer concerned, shall give effect to the directions, issued.

Form - I

[See Rule 3(1)]

I (name), District Collector hereby authorize Sri/Smt./Kum. (Designation) to convene the special meeting of the members of Mandala Praja Parishad for the election of member (Co-opted) / President / Vice-President of the said Mandal Praja Parishad.

Place:

Date:

District Collector

(Signature)

& Seal

Form - II

Notice of Election

[See Rules 3(2) and 8(2)]

Notice is hereby given to Sri/Smt./Kum. Member of the Mandal Praja Parishad that a special meeting of the members of the Mandal Praja Parishad will be held at (time) on (date) at its Office for the election of the Member specified in clause (vi) of sub-section (1) of Section 143 of the Telangana Panchayat Raj Act, 2018. The member is requested to make it convenient to attend the meeting.

(2)

The following details regarding nominations are also furnished to the members for information:

(i)

Nomination papers which shall be in Form-III appended to the Telangana Panchayat Raj (Conduct of election of Member (co-opted), President and Vice-President of Mandal Praja Parishad and members (co-opted), Chairperson and Vice-Chairperson of Zilla Praja Parishad) Rules, 2018, may be delivered to the Presiding Officer by the candidate or his proposer at the office of the Mandal Praja Parishad before 10.00 A.M on (date)

(ii)

The nomination papers will be taken up for scrutiny by the Presiding Officer at the office of the Mandal Praja Parishad on (date) between the hours of and

(iii)

The name of the persons whose nominations are valid will be published on the notice board of the Office of Mandala Praja Parishad on (date)at

(iv)

Notice of withdrawal of any candidate from election may be delivered to the Presiding Officer by the candidate or his/her proposer at the Mandal Praja Parishad Office on (date) before (hour)

*(3) On the same day, soon after the election of the member (Co-opted) specified above, another meeting in which they will participate will be held in the office of Mandal Praja Parishad for the election of the President / Vice-President of the Mandal Praja Parishad soon after completion of election to (co-opted) Member. If for any reason such an election is not held on that day, it will be held on the next day whether or not it is a holiday observed by the Mandal Praja Parishad.

The Member is requested to make it convenient to attend that meeting also.

Place :

Date :

(Signature)

Designation

*Strike off this para while issuing this form for casual election to only Member (Co-opted) Election.

Form - III

(See Rule 5(1))

Nomination Paper

Election of the Member (Co-opted) forMandal Praja Parishad

I hereby nominate Sri/Smt./Kum..... as a candidate for election as a member (Co-opted) specified under clause (vi) of sub-section (1) of Section 143 of the Telangana Panchayat Raj Act, 2018.

1. Name of candidate's father / husband:

2. Full postal address of candidate:

My name is and I am the member of the Mandal Praja Parishad.

Signature of Proposer.

Signature and name of the Seconder...

(To be filled by the Candidate)

I, the above mentioned candidate assent to this nomination. I am registered voter in this Mandal.

My name is entered at Sl.No..... of the electoral roll forGram Panchayat.

I am not less than twenty one years of age.

I belong to Community which is a religious / linguistic minority. Certificate is enclosed /furnished below:

Date:

Signature of the Candidate.

Minority Community Certificate

Certified that Sri/Smt.Kum son/daughter of Sri residing at belongs to community, which is a religious / linguistic minority community in this State.

Place:

Date:

Signature of the Tahasildar/ Gazetted Officer

(with seal)

Form - IV

[See Rule 5(9) & 8(2)]

Notice of the Meeting for the Election of President/ Vice-President, Mandal Praja Parishad

Notice is hereby given to Sri/Smt./Kum member (Co-opted) of Mandal Praja Parishad who has been declared as such at the special meeting held today at (time) that another special meeting of the members of Mandal Praja Parishad will be held today i.e., on (date) at (time) in the office of the Mandal Praja Parishad for the election of the President /Vice-President of the Mandal Praja Parishad.

If for any reason, election is not held on the aforesaid date, it shall be held at the same time on the next day whether or not is a holiday observed by the Mandal Praja Parishad.

The member is requested to make it convenient to attend the meeting.

Place:

Date:

Signature

Designation.

To

Sri / Smt/ Kum.....

Member (Co-opted)

..... Mandal Praja Parishad.

Form - V

[See Rule 13 (2)]

Notice of Meeting For Casual Election of President / Vice-President of Mandal Praja Parishad

Notice is hereby given to Sri/Smt./Kum Member of Mandal Praja Parishad, that a meeting of the members of Mandal Praja Parishad will be held at (time) on (date) at its office for the Election of President / Vice-President, Mandal Praja Parishad in the existing vacancy.

If for any reason, election is not held on the aforesaid date, it shall be held at the same time on the next day whether or not it is a holiday observed by the Mandal Praja Parishad.

The member is requested to make it convenient to attend the meeting.

Place:

Date:

Signature.

Designation

To

Sri / Smt./ Kum.....

Member of Mandal Praja Parishad.

.....

Form -VI

Notice of Election

[See Rule 14(2) and 19(2)]

Notice is hereby given to Sri/Smt./Kum member of the Zilla Praja Parishad that a special meeting of the members of the Zilla Praja Parishad will be held at (time) on (date) at its office for the election of the Member specified in clause (vi) of sub-section (3) of Section 172 of the Telangana Panchayat Raj Act, 2018. The member is requested to make it convenient to attend the meeting.

(2)

The following details regarding nominations are also furnished to the members for information:

(i)

Nomination papers which shall be in Form VII appended to the Telangana Panchayat Raj (Conduct of Election of Member (Co-opted), President and Vice-President of Mandal Praja Parishad and Members (Co-opted), Chairperson / Vice- Chairperson of Zilla Praja Parishad) Rules, 2018 may be delivered to the Presiding Officer by the candidate or his proposer at the office of the Zilla Praja Parishad before 10.00 A.M on (date)

(ii)

The nomination papers will be taken up for scrutiny by the Presiding Officer at the Zilla Praja Parishad on the date between the hours of and

(iii)

The names of the persons whose nominations are valid will be affixed on the notice board of the office of Zilla Praja Parishad on dateat (hour).....

(iv)

Notice of withdrawal of any candidate from election may be delivered to the Presiding Officer by the candidate or his/her proposer at the Zilla Praja Parishad Office on (date) before (hour).....

* (3) On the same day soon after the election of the member (co-opted) specified above, another meeting in which they will participate will be held in the office of the Zilla Praja Parishad for the election of the Chairperson and Vice-Chairperson of the Zilla Praja Parishad soon after completion of election for (Co-opted) Member. If for any reason such an election is not held on that day, it will be held on the next day whether or not it is a holiday observed by the Zilla Praja Parishad.

The member is requested to make it convenient to attend the meeting also.

Place:

Date:

Signature:

Designation.

* Strike off this para while issuing this form for casual election to only Member (Co-opted) Election.

Form - VII

[See Rule 16(1)]

Nomination Paper

Election of the Member (Co-opted) forZilla Praja Parishad.

I hereby nominate Sri/Smt/Kum as a candidate for election as a member (Co-opted) specified under clause (vi) of sub-section (3) of Section 172 of the Telangana Panchayat Raj Act, 2018.

1. Name of candidate's father/husband:

2. Full postal address of candidate:

My name is and I am the member of this Zilla Praja Parishad.

Date:

Signature of the proposer

Signature and name of the Seconder.

[To be filled by the Candidate]

I, the above mentioned candidate asset to this nomination. I am a registered voter in the district. My name is entered at Sl.No. in the electoral roll ofGram Panchayat.

I am not less than twenty one years of age.

I belong to community which is a religious / linguistic minority. Certificate is enclosed/ furnished below:

Date:

Signature of the Candidate.

Minority Community Certificate

Certified that Sri/Smt.Kum son/daughter of Sri residing at belongs to community, which is a religious / linguistic minority community in the State.

Place:

Date:

Signature of the Tahsildar / Gazetted Officer

(with seal)

Form - VIII

[See Rule 16(9) and 19(2)]

Notice of the Meeting for the Election of Chairperson / Vice-Chairperson, Zilla Praja Parishad

Notice is hereby given to Sri/Smt./Kum member (Co-opted) of Zilla Praja Parishad who has been declared as such at the special meeting held today at (time)..... that another special meeting of the members of Zilla Praja Parishad will be held today i.e, on (date) at (time) in the office of Zilla Praja Parishad for the Election of Chairperson / Vice-Chairperson of the Zilla Praja Parishad.

If for any reason the election is not held on the foresaid date, it shall be held at the same time on the next day whether or not it is a holiday observed by the Zilla Praja Parishad.

The member is requested to make it convenient to attend the meeting.

Place:

Date:

Signature

Designation.

To

Sri/ Smt/ Kum

Member (Co-opted)

..... Zilla Praja Parishad

Form - IX

[See Rule 24 (2)]

Notice of Meeting for Casual Election of Chairman / Vice-Chairman, Zilla Praja Parishad

Notice is hereby given to Sri/Smt./Kum. Member ofZilla Praja Parishad that a meeting of the members of Zilla Praja Parishad will be held at (time)..... on (date)..... at its office for the election of Chairman / Vice-Chairman, Zilla Praja Parishad in the existing vacancy.

If for any reason, election is not held on the aforesaid date, it shall be held at the same time on the next day whether or not it is a holiday observed by the Zilla Praja Parishad.

The member is requested to make it convenient to attend the meeting.

Place:

Date:

Signature

Designation.

To Sri/ Smt/Kum.....

Member of Zilla Praja Parishad.

Related AI tags, queries and research notes

Translation